CHAPTER 44 Union Public Service Commission

The Union Public Service Commission (UPSC) is the central recruiting agency in India. It is an independent constitutional body in the sense that it has been directly created by the Constitution. Articles 315 to 323 in Part XIV of the Constitution contain elaborate provisions regarding the composition, appointment and removal of members along with the independence, power and functions of the UPSC.

COMPOSITION

The UPSC consists of a chairman and other members appointed by the President of India. The Constitution, without specifying the strength of the Commission has left the matter to the discretion of the President, who determines its composition. Further, no qualifications are prescribed for the Commission's membership except that one-half of the members of the Commission should be such persons who have held office for at least ten years either under the Government of India or under the government of a state. The Constitution also authorises the President to determine the conditions of service of the chairman and other members of the Commission. In addition, the President is authorised to make provisions with respect to the number of members of the staff of the Commission and their conditions of service.

The chairman and members of the Commission hold office for a term of six years or until they attain the age of 65 years, whichever is earlier. However, they can relinquish their offices at any time by addressing their resignation to the president. They can also be removed before the expiry of their term by the President in the manner as provided in the Constitution.

The President can appoint one of the members of the UPSC as an acting chairman in the following two circumstances[1]:

1. When the office of the chairman falls vacant; or
2. When the chairman is unable to perform his/her functions due to absence or some other reason.

The acting chairman functions till a person appointed as chairman enters on the duties of the office or till the chairman is able to resume his/her duties.

REMOVAL

The President can remove the chairman or any other member of UPSC from the office under the following circumstances:

1. If he/she is adjudged an insolvent (that is, has gone bankrupt);
2. If he/she engages, during his/her term of office, in any paid employment outside the duties of his/her office; or
3. If he/she is, in the opinion of the President, unfit to continue in office by reason of infirmity of mind or body.